

Court No. - 40

Case :- WRIT - C No. - 37382 of 2022

Petitioner :- Rajeev Verma

Respondent :- Purvanchal Vidyut Vitaran Nigam Limited And 2 Others

Counsel for Petitioner :- Vivek Prakash Mishra

Counsel for Respondent :- Udit Chandra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Ajit Singh,J.

Heard Sri Vivek Prakash Mishra, learned counsel for the petitioner and Sri Udit Chandra, learned counsel for the respondent nos. 1 & 2.

The present writ petition is preferred for a direction in the nature of mandamus directing the respondents to grant domestic electricity connection in Annpurna Apartment including petitioner's flat no. 301, Rajeshwari Nagar Colony, Mahmoorganj, Varanasi.

Learned counsel for the petitioner, in support of his submission, states that the petitioner has moved an application for domestic electricity connection in the apartment in question and the said application is in accordance with the provisions contained in Chapter 4.9, Part-1 of Electricity Supply Code, 2005 and in consonance with the recent amendment in Uttar Pradesh Electricity Regulatory Commission Regulations, Lucknow, which is enforced with effect from 17.05.2019. He has also placed reliance on Chapter-3 of the Code, 2005, which provides for new electricity connection in a multi-storey colony.

Learned counsel for the petitioner further submits that till date, the claim of the petitioner has not been acceded by the department concerned.

On the request of Sri Udit Chandra, learned counsel for the respondent no.1, Purvanchal Vidyut Vitaran Nigam Limited, the matter is pass over for enabling him to seek instructions in the matter.

Put up this case as fresh on 13.02.2023.

Order Date :- 2.2.2023/ Abhishek Gupta

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Counsel for Respondent :- Udit Chandra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Vivek Kumar Singh,J.

Heard learned counsel for the petitioner and Shri Udit Chandra, learned counsel for the respondents.

Learned counsel for the petitioner is permitted to implead concerned Executive Engineer, Purvanchal Vidyut Vitaran Nigam Ltd. as party respondent no.4 forthwith.

Present writ petition has been preferred for a direction to respondents to grant domestic electricity connection in Annpurna Apartment including petitioner's flat no.301 2BHK area 921 sq. mtr., Rajeshwari Nagar Colony, Mahmorrganj, Varanasi and for a further direction to respondents to decide the pending representation of the petitioner dated 26.12.2021.

It is contended that the petitioner is ready to pay all the charges for that connection as per law and as such indulgence may be accorded by this Court.

Learned counsel for the respondents has submitted that the grievance of the petitioner shall be considered by respondent no.4 and appropriate decision with regard to grant of electricity connection shall be taken in accordance with law expeditiously.

Considering the facts and circumstances of the case, without expressing any opinion on the merits of the issue and with the consent, the writ petition stands **disposed of** asking respondent no.4 to look into, examine and redress the grievance of the petitioner for grant of electricity connection in accordance with law preferably within four weeks from the date of production of certified copy of this order.

Order Date :- 20.2.2023

SP/